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Claims foundation for a complaint that can survive a motion to dismiss

Brendan Ngwa Nforbi v. The Hertz Corporation

Prepared November 2, 2026 (Pacific), from the accepted October 22 offer and the November 2 HireRight report and pre-adverse letter. Penal Code section 290.46(j) is the statute. No complaint has been filed. No figure in this paper is a number to send.

THE DECISION

1. **Count 1, after a Civil Rights Department right-to-sue notice.** Government Code section 12952, against The Hertz Corporation only. The letter heads the ground "Criminal Information," then gives only the category "Alcohols related offenses-Does not meet," and leaves the deadline blank.
2. **Count 2 is drafted and held.** Penal Code section 290.46(j)(2)(E) and (j)(4)(A), against The Hertz Corporation only, and only after the company identifies the items it used or the source records support use. HireRight is not the statutory user.
3. **Hertz Global Holdings, Inc. stays off the complaint.** The operating company made the offer and sent the letter. The parent's tax-credit email is not joint employment.
4. **No wages are booked.** The rate is $23 an hour, full time. Weekly hours are in the offer letter and have not been confirmed from that letter. Do not assume a 40-hour week.

Prepared November 2, 2026 (Pacific). This is the pleading plan for a complaint that has not been drafted for filing and has not been filed. It is not a settlement demand, not a number to send, and not a letter to Hertz or HireRight. Do not send this memo. Do not put a repository link in anything that goes to the company, a court, or the Civil Rights Department.

Three memos, and they do different jobs:

- **PC29046_EVIDENCE.md** is the element map. Facts, gaps, and open questions.
- **LITIGATION_CLAIMS_AUDIT_2026-11-02.md** is the hunt: every theory, the missing fact that disables it, and the cases the defense will cite.
- **PLEADING_ARCHITECTURE_AND_RESPONSE.md** is the verified chronology, the pleading gates, and the response draft. That draft was deliberately kept neutral. It does not mention a registry or section 290.46. Do not replace it with a letter that does.
- This memo is the complaint decision. It picks the two counts, the defendant, and the allegations that stay out because they would lose the motion.

Social Security numbers, dates of birth, driver's-license numbers, the home street address, and the printed offense titles are left in the PDFs and in the evidence map. They are not repeated here.

Labels: **PLEAD** (a fact the complaint can allege because a document in the file says it), **ALTERNATIVE** (a reading the documents support and the complaint should plead in the alternative, because the opposite reading is also on the face of the paper), **DO NOT PLEAD** (an allegation that contradicts the documents or that hands the defense a dismissal).

The case that survives

A complaint that survives a demurrer, and Rule 12(b)(6) if the case is removed, is a short complaint. It pleads two counts against the company that made the offer and sent the letter. It does not plead every statute that touches a background check.

The offer is the injury. On October 22, 2026, The Hertz Corporation offered, and Brendan Ngwa Nforbi accepted, a full-time Manager Trainee job in Palo Alto at $23 an hour. On November 2, 2026, the same company wrote that it had reviewed the background report and that a preliminary decision rescinding that offer already existed. The wage, the job, and the accepted offer are what make the damages real. The report is what makes the statutory counts real.

The report and the letter do not say the same thing. The report flags three bodies of information **Client Review Required**: the driving record, one Santa Clara court record (case C1761642), and two registry subrequests that the report itself says are California registry information governed by Penal Code section 290.46. A separate subrequest on the name Brendan Ngwa is **Not in Registry** and **Meets Company Standards**. The letter then says the review may cost him the job "including" this line, and only this line:

> [Criminal Information] Alcohols related offenses-Does not meet

That mismatch is the lawsuit. Plead it as two alternative readings. Do not adopt the company's reading as a fact, and do not allege a fact the letter does not state.

Reading A — conviction history. The heading Hertz chose is criminal information. The only criminal court record in the report is case C1761642, and Hertz flagged it Client Review Required. The notice does not identify that case, any court, or any conviction. If the preliminary decision rests at least in part on conviction history, Government Code section 12952(c) required an individualized assessment of the Manager Trainee duties and a notice that names the conviction and states a real deadline. A category, "Does not meet," is not that assessment.

Reading B — registry information. The same review covered the results Hertz had just been told to review. Those results include the registry lines, the Penal Code section 290.46 warning HireRight wrote into the report on October 30, and the report's own statement that proper use of the report is the company's responsibility. The letter identifies no person at risk. If Hertz used information disclosed pursuant to section 290.46 for this employment decision, section 290.46(j)(2)(E) and (j)(4)(A) supply the second count.

Reading A is the count to build the case on. It matches the words the company printed ("Criminal Information," "preliminary decision recinding the offer," "specific criminal information"). It is filed after a Civil Rights Department right-to-sue notice, and not before.

Reading B is drafted below and kept separate, so that a demurrer aimed at the source problem cannot take Reading A with it. It is not filed on today's letter alone. The letter specifies the alcohol category and does not say the registry was a ground. Filing Reading B before the company identifies the items, or before the source records exist, is the motion to dismiss. The response already drafted in the pleading-architecture memo is what forces that identification without announcing the theory.

What the offer letter is worth

The offer-letter PDF is cataloged at **/documents/matter-43/Offer Letter - Manager Trainee, Palo Alto ($23 per hour) (Oct 22 2026).pdf**. Its bytes are not in this checkout. Do not invent weekly hours, a start date, a duty list, a driving-essential-function sentence, or the wording of the at-will or contingency clauses beyond exhibit e05.

PLEAD from e05 and the October 22 emails and screenshots.

- The offeror is The Hertz Corporation.
- The job is full-time Manager Trainee, Palo Alto, requisition 43711.
- The rate is $23 an hour.
- The supervisor named on the offer is Kathleen Williams. Her October 22, 3:40 p.m. message said an offer for Manager Trainee at the Palo Alto location should arrive.
- The offer is contingent on a background check, and it contains an at-will clause.
- Gloria Williams, Talent Acquisition, wrote at 3:38 p.m. that an offer was coming. Hertz Careers wrote at 3:39 p.m. that the offer was extended. The applicant wrote, "I happily accept the offer for the Manager Trainee position." Hertz Careers confirmed acceptance at 5:00 p.m. The portal showed Offer Accepted.
- On October 23, Gloria Williams sent pre-boarding for requisition 43711, described him as joining, assigned two tasks (the Oracle additional-information task and the HireRight request), and welcomed him to Hertz.
- The background authorization was signed October 23, after the offer and the acceptance. That sequence complies with Government Code section 12952(a)(2). Plead it as the setup. Do not plead a "they asked too early" count.

DO NOT PLEAD a breach-of-contract count. At-will plus a background contingency is the defense. The offer's value is the measure of damages and the existence of a conditional offer, which is what section 12952(c) attaches to. It is not a promise that survives the contingency.

DO NOT PLEAD promissory estoppel. Nothing in the file shows he quit a job, turned down another offer, or moved because of this offer. Interview travel is not that reliance. Add the count later only if a document shows reliance of that kind.

The weekly hours and any start date live in the offer letter. Economic damages are $23 an hour times the full-time schedule that letter states, according to proof, once the letter is read and once a final decision or a lost start is in the file. Do not compute a total. Do not book the wages yet.

What the report is worth

Order OR-102326-NH87V. Package: Field (Driver Required). Requisition 43711, Manager Trainee, Palo Alto. Oracle candidate ID 2847550. Requested by Kesha Nedio-Casey, Hertz pre-employment (field), Estero, Florida. Submitted October 23, 2026, 3:04 p.m. Pacific. Completed November 2, 2026, 2:29 a.m. Pacific. Adjudication: Client Review Required. The adjudication libraries printed on the report are “The Hertz Corporation (Shell) (GL-HTZ001-001) v1.7” and “Auto Library Set - Excl. MVR, EDU, EMP - Managed Adjudication 3.0.”

The activity log says HireRight adjudicated the report at 2:29 a.m. Pacific on November 2, result Client Review Required. The company’s letter went out the same morning at 10:19 a.m. Pacific. The 2:29 a.m. email and the cover letter both say delivery of the report is not a final decision.

PLEAD these report facts.

- Three items are Client Review Required and are the items a client was told to review: the MVR, Santa Clara case C1761642, and two National Sex Offender Registry subrequests on the Newanforbi name forms. Both of those subrequests are In Registry. Researchers wrote, on October 30, that the applicant is listed on the sex-offender registry in California, that the information was verified by name and date of birth, and that information from the California Sex Offenders’ Registry may not be used for employment except to protect a person at risk, citing Penal Code section 290.46. The same notes say the search was performed through the United States Department of Justice.
- The subrequest on “Brendan Ngwa” is Not in Registry and Meets Company Standards. The offer and this matter use Brendan Ngwa Nforbi. The report and the letter use Ngwanforbi, with the other last name Newanforbi. Keep the split. Do not plead mistaken identity. These are name forms already treated as his. The point is narrower: the employer had a Meets result on the offer-name form and Client Review Required results on the other forms, and the notice does not say which information the decision used.
- The MVR prints a suspension for refusal or failure to complete a chemical test, with a reinstatement date of May 19, 2026, and a disqualification for refusing a test, including an alcohol implied-consent test, with a clear date of November 30, 2025. Both end dates fall before the October 22 offer and before the November 2 letter. A separate MVR item, docket A302962, is a Vehicle Code section 4000(a) unregistered-vehicle conviction. It is not an alcohol offense. The license number stays masked.
- Case C1761642 is the only criminal court record on the report. Disposition January 12, 2018, no contest. Offense date February 26, 2017. The report prints a parole/release date of December 2, 2020, and a protective order through January 12, 2028. The printed offense titles are in the evidence map. Other counties and the federal searches are no record. Prohibited parties: not in database.
- The report’s closing note says proper use of the report, and final verification of identity, are the requesting company’s responsibility.
- Managed Adjudication 3.0 completed at 2:29 a.m. Pacific on November 2 as Client Review Required. The report does not adjudicate a line called “Alcohols related offenses-Does not meet.” That phrase appears in the letter.

ALTERNATIVE. "Client Review Required" means the company had to look at those sections. The letter says the company did review the results. A plausible inference, and the one to plead, is that the review included each section the report flagged for the client. The word "including" in the letter does not say the alcohol category was the only information reviewed.

DO NOT PLEAD that the report says the hit came from the Megan's Law website. It does not. Plead the researchers' description (California Sex Offenders' Registry, section 290.46) and the Department of Justice sentence in the same count, so the complaint does not hide the source problem.

DO NOT PLEAD that "Parole/Release Date: Dec 2, 2020" has already been proved to be the start of parole, or the end. The label is combined. That uncertainty is why there is no obsolescence count below.

What the November 2 letter is worth

The letter is from The Hertz Corporation, Estero, Florida, dated November 2, 2026, about order OR-102326-NH87V, addressed to Brendan Ngwanforbi. It says the company obtained a HireRight report, that a link to the report and a summary of FCRA rights are provided, and then:

> Based on a review of the results of your background report and Company's eligibility criteria, we are notifying you that there is information in your background report that may result in Company deciding not to offer you … employment … including the following specific information identified in your background report: [Criminal Information] Alcohols related offenses-Does not meet.

It also says the company will not make a final decision for at least five business days from the date of the letter, and:

> You have a right to respond to this notice before the Company's preliminary decision recinding the offer of employment becomes final. You may also submit any evidence in mitigation of the specific criminal information identified above…

The deadline line is not a date. It is an unfilled bracket that starts "[Date (at least five business days from the date of receipt of the notice" and pastes instructional text, including that an emailed notice is deemed received two business days after it is sent. The urgent email carrying the letter is timestamped November 2, 2026, 10:19 a.m. Pacific.

PLEAD those sentences. Quote the company's spelling "recinding" once. The letter uses template language about "deciding not to offer" even though the offer was already accepted. The accepted offer is the fact. The rescission sentence is the company's description of its own preliminary decision.

DO NOT PLEAD that the offer has been finally rescinded. The letter, the 2:29 a.m. email, and the cover letter all say the decision is not final.

DO NOT PLEAD a calendar last day. The bracket is blank, and it conflicts with the sentence that counts five business days from the date of the letter. Respond promptly. This memo does not pick the last day.

DO NOT PLEAD that Hertz failed to send a pre-adverse packet or failed to provide the report. The packet encloses the summary of rights and a way to open the report. A count that says they sent nothing is contradicted by the exhibit and will be dismissed.

Caption, court, and who is sued

File in the Superior Court of California, County of Santa Clara. The job is in Palo Alto. Plead an unlimited civil case. Do not file in federal court. Do not add a federal claim. A federal claim is federal-question removal, and the federal theories available on this file are the weak ones.

Diversity removal is still possible if Hertz is a citizen of another state and the amount in controversy is read as exceeding $75,000. Do not cut the prayer to avoid that. A capped prayer throws away the value, and the complaint is written to Rule 12(b)(6) so removal does not change the pleading standard it has to meet. Back pay, emotional-distress damages, and the statutory remedies below are according to proof. State no dollar prayer that could be mistaken for a demand.

The Hertz Corporation is the only defendant in the first complaint. It made the offer, took the authorization, owns the adjudication library printed on the report, and signed the letter.

Hertz Global Holdings, Inc. stays off the complaint. The October 22 ADP Work Opportunity Tax Credit email describes the application as an application with Holdings. That is a preserved fact. It is not a joint-employer allegation. The claims audit records Hertz's own Form 10-K as saying Holdings owns The Hertz Corporation indirectly and does not conduct the operating business. Shared ownership is not alter ego. A Holdings count that the 10-K contradicts is a dismissal motion the Corporation count does not need. The matter caption can stay as it is until a complaint is filed. The complaint caption is Brendan Ngwa Nforbi v. The Hertz Corporation. Revisit Holdings only if a later document shows Holdings set the eligibility rule or made the decision.

HireRight, LLC is not a defendant in the first complaint. *Mendoza v. ADP Screening & Selection Services, Inc.*, No. B214653 (California Court of Appeal, 2010), held that a screening company that compiled Megan's Law information and furnished it to an employer had not "used" the information, and the case went out on anti-SLAPP. The opinion discusses the statute's former subdivision (l). The employment-use prohibition is now subdivision (j). Confirm the official reporter volume and page before a brief cites the case. The report already assigns proper use to the company. Suing HireRight on Count 2 imports an anti-SLAPP motion into the employment case. A later amendment can add HireRight on its own reporting conduct if a specific line is shown to be false, or if a page-level disclosure or provenance defect is later proved. Do not plead the registry listing, or the court record, as false.

Plead on information and belief that The Hertz Corporation employs five or more persons. Section 12952 applies to an employer of that size. Hertz is not a criminal-justice agency, and Manager Trainee is not a farm-labor-contractor job. The statutory exemptions in section 12952(d) are affirmative defenses. The complaint should allege that the job offered was Manager Trainee and that the letter does not identify any statute that required the company to deny that job. "Field (Driver Required)" is a real fact and the company's best defense on the driving record. Plead it. Then plead the distinction: a reason to look at a driving record is not a reason to use registry

information, and it is not a reason to deny the job by a category called “Alcohols related offenses-Does not meet” without identifying a conviction or weighing the job’s duties. Do not allege that the offer letter says driving is incidental. The letter has not been read in this checkout.

No local ordinance is part of this complaint. Santa Clara County’s ban-the-box practice applies to the county. East Palo Alto is not Palo Alto. Do not add a city ordinance that has not been confirmed against the City of Palo Alto.

Count 1 — Government Code section 12952

Unlawful employment practice, Fair Employment and Housing Act. Defendant: The Hertz Corporation only. This count incorporates the offer facts, the report facts about case C1761642 and the MVR, and the letter. It does not incorporate the registry-source allegations from Count 2.

Section 12952(c)(1) requires an individualized assessment before an employer denies a job solely or in part because of conviction history. The assessment asks whether the conviction history has a direct and adverse relationship with the specific duties of the job, considering the nature and gravity of the offense, the time that has passed since the offense and the completion of the sentence, and the nature of the job. Title 2, California Code of Regulations, section 11017.1(c)(1) describes that assessment as a reasoned, evidence-based determination. A policy of refusing a category of offense is not that determination. The Civil Rights Department’s Fair Chance guidance states the same limit: an employer cannot simply refuse anyone with a given kind of conviction.

Section 12952(c)(2) requires the preliminary written notice to contain notice of the disqualifying conviction or convictions, a copy of the conviction-history report if any, and an explanation of the right to respond before the decision becomes final and the deadline by which to respond. Regulation 11017.1(c)(2) requires the same, and it provides that an emailed notice is deemed received two business days after it is sent and that the response period is then at least five business days from receipt. The statute and the regulation require the notice to state the deadline. They do not say that pasting the regulation into a blank bracket is a deadline.

ALTERNATIVE allegations, all of them document-supported.

1. The preliminary decision was based at least in part on conviction history. The notice headings and the mitigation sentence say “criminal information.” The only criminal court record flagged Client Review Required is case C1761642. The notice does not identify it. That is a violation of section 12952(c)(2)(A), whether or not the company also looked at the driving record.
2. The MVR block was reviewed as one Client Review Required section. That block contains a conviction, docket A302962, Vehicle Code section 4000(a), which is not an alcohol offense. A category output of “Alcohols related offenses-Does not meet” does not identify that conviction either. Considering the block “in part” because of a conviction, without naming it, violates the same subdivision.
3. The words “Company’s eligibility criteria” and “Does not meet,” with no statement of the Manager Trainee duties, no statement of time passed, and no statement of gravity, are a category result. Section 12952(c)(1) required the weighing even though subdivision (c)(1)(B) does not require the employer to write the weighing down. The violation to plead is that the decision was reached by the category. Do not plead that the statute required a particular

outcome. The court record is serious. The offense date is February 26, 2017, the disposition is January 12, 2018, and the report prints a parole/release date of December 2, 2020. More than eight years passed between the offense and the offer. An assessment would have had to weigh that gravity, that time, and the specific duties. The letter does none of it. Plead the skip. Do not plead that gravity was slight.

4. The deadline line is an unfilled bracket. It does not state a date. It recites conflicting clocks: five business days from the date of the letter, five business days from receipt, and a deemed email receipt two business days after sending. That is a violation of section 12952(c)(2)(C) and regulation 11017.1(c)(2)(E). Leaving the applicant unable to tell when the right to respond closes also supports section 12952(a)(4), interference with the right this section gives him.
5. The chemical-test suspension prints a reinstatement date of May 19, 2026, and the disqualification prints a clear date of November 30, 2025. Both had passed before the offer. If the company contends the category refers to those license actions, the category still does not account for the end dates printed in the company's own report. That fact supports "this was a matrix," and it is mitigation. It is not a separate count, and it is not an allegation that the license is currently valid. Only the report's printed dates are in the file.

PLEAD the elements that are already complete. The conditional offer was made before the inquiry. The notice, if conviction history is part of the decision, was sent on November 2 and is missing the conviction identification and a deadline. Those notice facts do not wait for a final denial.

DO NOT PLEAD a final denial, a violation of section 12952(c)(5), or lost wages as a present fact, until a final decision or a lost start is documented. When a final denial arrives, amend to add the missing final notice: the denial itself, any internal appeal, and the right to file with the Civil Rights Department. If he disputes accuracy in writing within the first five business days and states that he is taking specific steps to obtain evidence, section 12952(c)(3) gives five more business days. Allege that extension only after he has actually done it.

DO NOT PLEAD that the company failed to make a conditional offer first, failed to enclose the report, or considered an arrest that did not result in conviction. The no-contest disposition is a conviction. The license actions are not pleaded as arrests.

Exhaustion. This count is an unlawful employment practice under the Fair Employment and Housing Act. It is not filed in court until the Civil Rights Department has issued a right-to-sue notice. Government Code sections 12960 through 12965. The charge can be opened now, because the notice already went out, and an immediate right-to-sue can be requested when the charge is filed. Confirm the Department's current procedure at filing. Attach the notice to the complaint. A Fair Employment and Housing Act count filed without it is the demurrer.

The charge should say: an offer was accepted; a preliminary notice followed; the notice does not identify any conviction; the deadline line is unfilled; the stated ground is a category; the applicant wants the job. It should not say the offer has been finally rescinded, and it should not state a settlement figure.

Count 2 — Penal Code section 290.46(j)(2)(E) and (j)(4)(A)

Held, not filed, until the company's answer or the source records support the use allegation. Defendant, when it is filed: The Hertz Corporation only. This count incorporates the offer, the registry portion of the report, the October 30 researcher notes, the Department of Justice sentence, the report's "proper use is your responsibility" note, and the letter's statements that the company reviewed the results and that a preliminary decision rescinding the offer exists. It does not incorporate Count 1's conviction-history allegations, and Count 1 does not incorporate this count. In the complaint, each count incorporates only the paragraphs that support it.

Section 290.46 is the Megan's Law internet-website statute, not section 290 standing alone. Subdivision (j)(1) authorizes use of information disclosed pursuant to that section only to protect a person at risk. Subdivision (j)(2)(E) prohibits use of that information for employment, except as (j)(1) or another law allows. Subdivision (j)(3) leaves authorized access under Penal Code sections 11105 and 11105.3, and Labor Code section 432.7, in place. Subdivision (j)(4)(A) provides the remedies: actual damages; an amount determined by the trier of fact not exceeding three times the actual damage and not less than $250; attorney's fees; exemplary damages, or a civil penalty not exceeding $25,000. The "or" is in the statute. Plead the exemplary damages and the civil penalty in the alternative. Do not pray them as a stack. Subdivision (j)(4)(B) is a pattern injunction. One file does not plead a pattern.

PLEAD.

- The report furnished to the company contains California Sex Offenders' Registry information. The company's researchers were told, inside the report, before the report was even completed, that this information may not be used for employment except to protect a person at risk, and they were pointed at section 290.46.
- The company reviewed the results. The package those results belong to was adjudicated Client Review Required under the company's own library. The letter describes a preliminary decision rescinding the accepted offer.
- The letter identifies no person at risk at the Palo Alto Manager Trainee job. It does not mention the registry. The protective order printed on case C1761642 is a fact in the report. Do not hide it, and do not allege it is the person-at-risk finding the statute requires. The letter never mentions it. The (j)(1) exception is the company's to establish if the information was information disclosed pursuant to section 290.46.
- On information and belief, the registry information was part of the review that produced the preliminary decision, because the company said it reviewed the results, the results flagged that information for client review, and "including" the alcohol line does not exclude the rest.

ALTERNATIVE on the source. Plead that the California registry information the researchers themselves described as subject to section 290.46 is information disclosed pursuant to that section. In the same paragraphs, plead that the report says the search was performed through the United States Department of Justice. Do not allege "from the Megan's Law website" as a fact. The Department of Justice distinguishes its public National Sex Offender Public Website, which reads jurisdictional public sites, from the nonpublic National Sex Offender Registry, which is limited to criminal-justice users. That distinction, set out in the claims audit, is the discovery target: product

name, URL or web service, upstream source, query, payload, and time. It is not a pleaded fact. Do not search the Megan's Law website to try to prove the source. If the proof shows a channel saved by subdivision (j)(3), or a decision that never used the registry information, this count fails and Count 1 remains.

Donaleski v. Wal-Mart Stores, Inc., 2009 WL 1296257 (E.D. Cal. May 8, 2009), is the defense case on causation. An employment decision that rests on an independent court record or on the driving record, and not on website information, is not a section 290.46 use. Confirm the citation against the opinion before a brief relies on it. Count 2 therefore does not allege that the alcohol line is a pretext. It alleges the review, the warning, and the alternative that the flagged registry information was part of the results the letter says the company reviewed. The response in the pleading-architecture memo asks the company to identify every item and say whether each is a conviction, a licensing action, or another record. That question is asked before the company writes an after-the-fact "MVR only" memorandum. If the answer is a documented independent driving-record decision, Count 2 comes out.

DO NOT PLEAD HireRight as the user. **DO NOT PLEAD** that the alcohol line and the registry line are the same piece of information. **DO NOT PLEAD** a completed denial as an element. Use, if it happened, happened when the company reviewed the information for this employment decision and stated a preliminary decision rescinding the offer. Wage loss is additional damage, not the element of use.

This is the count a demurrer is aimed at. Keep it short so a sustained demurrer to this count has nothing to take with it.

Counts that were hunted and left out

Each of these was considered against the offer, the report, and the letter. Each one, pleaded now, makes the complaint easier to dismiss.

Theory	Why it is out
Investigative Consumer Reporting Agencies Act, Civil Code section 1786.18(a)(7), seven-year bar	The disposition is January 12, 2018, more than seven years before the report. The report also prints "Parole/Release Date: Dec 2, 2020," which is less than seven years before November 2, 2026. *Kemp v. Superior Court*, No. G061122 (California Court of Appeal, 2022), holds that "date of parole" in that statute means the start of parole, not the end, and that the federal Fair Credit Reporting Act does not preempt the state statute. Confirm the reporter page before a brief. The report's label is combined, so the measuring date is not established. Pleading obsolescence now pleads the defense date into the complaint.

Theory	Why it is out
Investigative Consumer Reporting Agencies Act, Civil Code sections 1786.16 and 1786.50, disclosure defects	The audit compared the signed forms and found no specific missing item yet. A typo of the company name is not that item. Section 1786.50's individual statutory amount does not require lost wages, so a proved page-level defect would be valuable later. It is not pleaded on a hunch. *Parsonage* and *Yeh*, both flagged in the audit as 2026 Court of Appeal opinions, are read there as recognizing a state statutory remedy without actual-damage proof for a qualifying violation, and *Yeh* as rejecting Unfair Competition Law standing without lost money or property. Read the opinions before a brief cites them.
Investigative Consumer Reporting Agencies Act, Civil Code section 1786.28, against HireRight	A public-record provenance or 30-day verification count requires a field-by-field omission. The evidence map does not establish one. The October 30 notes may be the verification. Leave it until the report is checked line by line.
Federal obsolescence, 15 U.S.C. section 1681c	Convictions are generally reportable. Do not plead a federal seven-year conviction bar.
Fair Credit Reporting Act pre-adverse notice, 15 U.S.C. section 1681b(b)(3)	They sent the notice, the summary of rights, and access to the report before a final decision. A "they gave no notice" count is contradicted by the exhibit.
Fair Credit Reporting Act accuracy, 15 U.S.C. section 1681e(b), against HireRight	The mislabel "[Criminal Information]" is in Hertz's letter. The report's MVR and court sections describe what they describe. Do not plead the registry line or the court record as inaccurate. Accuracy can be added later if a specific line is shown to be false.
Labor Code section 432.7 as a lead count	That statute restricts arrests and detentions that did not result in conviction. The court record is a no-contest conviction. The driving items are license actions. The useful fact is the mislabel, and it is already inside Count 1. Section 290.46(j)(3) also saves authorized use under section 432.7.
Ban-the-box timing	The offer and the acceptance were October 22. The authorization was October 23. That is the sequence section 12952(a) requires.
Breach of contract	At-will, and contingent on the background check.
Promissory estoppel	No quit, no declined job, and no move are in the file.
Intentional infliction of emotional distress	An employment decision, even a statutory one, is not pleaded as outrageous conduct on these documents. Emotional distress is compensated inside the Fair Employment and Housing Act count, according to proof, with no number stated.
Defamation	The letter went to him. Truth is a defense to the court record and the registry line. The "criminal information" label is a notice defect, not a libel count.
Unruh Civil Rights Act	This is an employment decision. The employment statute is the Fair Employment and Housing Act.
Negligence	The duties are statutory. A negligence count duplicates them and adds a duty fight.
Unfair Competition Law, Business and Professions Code section 17200	Proposition 64 requires lost money or property. No wages have been lost yet. Unlawful-prong borrowing of section 12952 or section 290.46 can be added when a final decision and a lost start exist. Do not plead it on a preliminary notice.

Theory	Why it is out
Wrongful failure to hire in violation of public policy	The statutes already supply the remedy. A separate tort is duplicative.
Pattern-or-practice injunction under section 290.46(j)(4)(B)	One screening file is not a pattern.
Alter ego, against Holdings alone	The actor on the offer, the authorization, the library, and the letter is The Hertz Corporation.
HireRight as a 290.46 defendant	*Mendoza* and anti-SLAPP.
Mistaken identity	The name forms are his. The Not-in-Registry result is a subrequest fact, not a second person.

Connor v. First Student, Inc. (2018) 5 Cal.5th 1026 holds that the Investigative Consumer Reporting Agencies Act and the Consumer Credit Reporting Agencies Act can both apply to the same report. That holding matters only if an obsolescence or accuracy count is added later. It is not a reason to plead either act now.

What can be added later, and only then

- Section 12952(c)(5), if a final denial arrives without notice of the denial, any internal challenge, and the right to file with the Civil Rights Department.
- The extra five business days, after he has disputed accuracy in writing and stated that he is taking specific steps to obtain evidence.
- Back pay and an Unfair Competition Law count, after a final decision and a lost or delayed start. The start date and the weekly hours come from the offer letter, which still has to be read.
- An obsolescence count, only if the parole start date, as distinct from the combined “Parole/ Release Date,” is more than seven years before the report.
- HireRight, only on a specific false statement, and never on Count 2.
- A federal count, never, unless a later document shows a real accuracy or notice failure that is worth removal. Nothing in this file is that document.

Damages, according to proof

No figure in this section is a demand, a counter, or a number to send. No settlement figure is stated. The statutory amounts are the remedies in the code. They are not a walk-away and they are not a floor to open with.

Plead the prayer this way.

1. Instatement into the accepted Manager Trainee job, if the decision becomes final and the court can order it.
2. Back pay at $23 an hour times the full-time hours stated in the October 22 offer letter, from the start the letter states through judgment, less interim earnings, according to proof. Not yet. The hours are not confirmed in this checkout, and there is no final decision and no documented lost start. The claims audit’s weekly illustration assumes a 40-hour week. Do not adopt that assumption, and do not use the annual figure built on it. The offer letter is the source.
3. Front pay if instatement is not ordered, according to proof.

4. Compensatory damages on Count 1, including emotional distress, according to proof. State no emotional-distress number in the complaint.
5. Punitive damages on Count 1 under Civil Code section 3294. The facts that make the allegation plausible are these, and they should be pleaded as facts rather than as the word “malicious”: on October 30 the report already contained the section 290.46 warning; on November 2 at 2:29 a.m. Pacific the company’s library returned Client Review Required; at 10:19 a.m. Pacific the company sent a letter stating it had reviewed those results and that a preliminary decision rescinding the offer existed; the letter identifies no person at risk and no conviction. Civil Code section 3294(b) requires an officer, director, or managing agent before punitive damages run against a corporation. Do not name Kesha Nedio-Casey, Gloria Williams, or Kathleen Williams as a managing agent. The letter is sent in the name of The Hertz Corporation from the Estero headquarters address, and the adjudication library is named “The Hertz Corporation (Shell).” Plead authorization and ratification through that company library and that company letter, and leave the managing agent’s name for discovery.
6. On Count 2, actual damages; an amount determined by the trier of fact not exceeding three times actual damages and not less than $250; and, in the alternative, either exemplary damages or a civil penalty not exceeding $25,000. Not all of them added together.
7. Costs of suit. Attorney’s fees under section 12965 or section 290.46(j)(4)(A) only if counsel is retained. A person representing himself does not recover attorney’s fees for his own time. *Trope v. Katz* (1995) 11 Cal.4th 274. Do not treat fees as a component of value while he is in propria persona.
8. Prejudgment interest where a statute allows it.

The value of the case, if the decision becomes final, is the job at $23 an hour, Fair Employment and Housing Act compensatory and punitive damages according to proof, and the section 290.46 remedies in the alternative. That is the value. It is not a number to put in a letter.

Sequence before any complaint

Do not file on the present record. A complaint that alleges a completed rescission, or that alleges he has already responded when he has not, is the motion to dismiss.

1. Read the offer letter and record the hours, the start date, the duty description, and the exact at-will and contingency sentences. Do not guess them.
2. Send the response already drafted in **PLEADING_ARCHITECTURE_AND_RESPONSE.md**, section D. It has not been sent. It asks the company to identify every item and to say whether each is a conviction, a licensing action, or another record, and it asks for a date certain. It does not cite section 290.46 and it does not ask whether website information was used. Keep it that way. A letter that announces the registry theory invites the independent-decision memorandum *Donaleski* rewards. Send a HireRight dispute only about a line that is actually inaccurate. Do not tell HireRight the court record or the registry line is a mistake.
3. Open a Civil Rights Department charge on the notice and the category decision, and request an immediate right-to-sue. Do not allege a final denial in the charge.
4. If the company makes the decision final, save that writing, and only then book a lost start.

5. File one state-court complaint after the right-to-sue notice is in hand. Count 1 as drawn above. Count 2 only if the company's answer, the final decision, or the source records support the use allegation. If they document an independent driving-record decision, file Count 1 without Count 2. Nothing from the left-out list.

The response window is open and the deadline is unfilled. Send the response promptly. Do not wait for a last day this memo refuses to invent.

How the complaint stays short

Plead parties, the October 22 offer and acceptance, the October 23 authorization, the November 2 report facts Count 1 needs, and the letter. Then Count 1. Then the prayer above. Add Count 2 only when its use allegation is supported, and give it its own incorporated paragraphs.

Do not add a fact section that argues. Do not attach this memo. Do attach, when a complaint is actually drafted, the offer letter, the report, and the November 2 letter, with personal identifiers redacted as the court requires. An incorporated exhibit controls over a contradictory allegation. That is why this foundation does not allege a website source, a filled-in deadline, or a completed rescission. The exhibits would destroy those sentences, and the rest of the case with them.

Appendix — response, not sent

This is the neutral response already written for the November 2 letter. It has not been sent. It does not mention a registry and it does not cite Penal Code section 290.46. Keep it that way. Send it only after you have read it. Do not add a phone number, a dollar figure, or a link.

Subject: Requisition 43711 — response to November 2 preliminary background notice / request for clarification

> I accepted The Hertz Corporation’s conditional offer for the full-time Manager Trainee position in Palo Alto, requisition 43711. I received the November 2 preliminary notice referring to “[Criminal Information] Alcohols related offenses-Does not meet,” and I want to respond before any final determination. I remain interested in completing onboarding.
>
> The MVR information in the furnished report describes an earlier suspension as ending May 19, 2026, and a commercial-driving disqualification as ending November 30, 2025. Those entries describe prior licensing actions; please identify whether the preliminary determination relies on those administrative records, a specific criminal conviction, or some other information, and whether Hertz contends any license restriction is currently active. I can provide current licensing/status evidence for review.
>
> If any conviction history is the basis, in whole or part, for a proposed rescission, please identify each disqualifying conviction and confirm the Fair Chance Act response deadline and process. The date/deadline field in the copy I received appears incomplete. Please preserve the full response period prescribed by California law and consider any responsive evidence before a final decision.
>
> Please identify all specific background-report items that Hertz currently considers disqualifying and confirm whether each is a criminal conviction, a DMV licensing action, or another type of record. Please identify the criteria applied to each item.
>
> Please confirm receipt and the appropriate contact to send current driving-status evidence, any corrections to the report, and rehabilitation/mitigation materials. I am requesting reconsideration before any final decision and am not withdrawing from the hiring process.
>
> Thank you,
>
> Brendan Ngwa Nforbi
>
> Plaintiff, In Propria Persona

Do not tell HireRight that the court record or the registry line is a mistake. Dispute only a line that is actually inaccurate. Do not invent a license status.